July 17, 2026

Hon. Michelle L. Phillips
Secretary
New York Public Service Commission
3 Empire State Plaza
Albany, NY 12223-1350

RE: Case 18-E-0138: Proceeding on Motion of the Commission to Regarding Electric Vehicle Supply Equipment and Infrastructure.

COMMENTS OF THE VEHICLE-GRID INTEGRATION COUNCIL (VGIC) ON JOINT UTILITIES COMPREHENSIVE RESIDENTIAL MANAGED CHARGING REPORT

I. INTRODUCTION

The Vehicle-Grid Integration Council (VGIC) is a 501(c)(6) membership-based trade association committed to advancing vehicle-grid integration (VGI) through policy development, education, and research. VGIC aims to ensure that the value of flexible EV charging and discharging is recognized and compensated, thereby achieving a more affordable, reliable, and efficient energy future. Established in 2020, VGIC represents 35 members[1], including automotive original equipment manufacturers (OEMs), leading electric vehicle service providers (EVSPs) and aggregators, electric vehicle supply equipment (EVSE) manufacturers and site developers, and non-investor-owned utilities. VGIC prioritizes collaborative engagement with all VGI champions and remains business model- and technology-agnostic in pursuing its mission.

[1] VGIC member companies and supporters include American Honda Motor Co., Inc., Ford Motor Company, General Motors, Nissan Group of North America, Bidirectional Energy, BMW of North America LLC, bodeEV, ChargePoint, ChargeScape, Codibly Inc., Critical Loop, dcbel, Eaton Corporation, EnergyHub, Enphase, EV.Energy, Fermata Energy, Mercedes-Benz Research & Development North America, Inc., Orange Charger, Inc., Renew Home, Rivian, Stellantis, SWTCH Energy Inc., Tesla, The Mobility House, Toyota Motor North America, Inc., UL Solutions, WeaveGrid, Clean Power Alliance, Connecticut Green Bank, Los Angeles Department of Water and Power, Marin Clean Energy, San Diego Community Power, Sacramento Municipal Utility District, and Salt River Project. The views expressed in these Comments are those of VGIC, and do not necessarily reflect the views of all individual VGIC member companies or supporters. (https://www.vgicouncil.org/)

VGIC appreciates the opportunity to comment on the Joint Utilities' (JU) *Comprehensive Residential Managed Charging Report* (JU Report), filed March 16, 2026.

II. VGIC COMMENTS ON THE JOINT UTILITIES' RECOMMENDATION #1.

VGIC agrees that utilities should explore more advanced objectives, including "dynamic alignment" and "supply cost optimization and alignment with periods of low-carbon or renewable energy supply."[2] The JU Report states that managed charging, including both passive programs and active programs, "consistently deliver grid value."[3] They further report on the value of active managed charging programs, detailing its ability to "…offer more precise control to deliver more value…"[4] However, the JU Report points to limited opportunities to use the active charge management capabilities to deliver additional value, such as through dynamic alignment with low-supply cost hours or low-carbon/high-renewable periods.[5]

The JU's findings regarding the value of active managed charging and vehicle-grid integration programs, aligned with more dynamic signals and co-optimization with decarbonization objectives, are consistent with the extensive existing literature from other programs and studies. A recent report published by VGIC and the Smart Electric Power Alliance (SEPA), developed jointly with leading automakers, charger manufacturers, aggregators, and utilities, provides a summary list of key relevant studies, included below in Table 1.

Table 1. Recent VGI Studies and Analysis from *Valuing Vehicle-Grid Integration Programs*[6]

Title	Author	Year Published
A Roadmap to Unlocking the Benefits of Bidirectional Charging	California Energy Commission and National Laboratory of the Rockies	2026
Demonstrating the Full Value of Managed Electric Vehicle Charging: Based on a Real-World Trial of EnergyHub's EV Solution	Brattle	2026

[2] JU Report at 20-21.
[3] *Id.* at 18.
[4] *Id.* at 19.
[5] *Id.* at 20.
[6] Fitzgerald et al. *Valuing Vehicle-Grid Integration Programs: A Tool for Improving Energy Affordability through EV Grid Services.* May 2026. https://www.vgicouncil.org/s/SEPA324VGICVehicleGridIntegrationProgramsReportFinal.pdf

Residential vehicle-to-grid profits under dynamic pricing: The role of real-world charging behavior	Stanford University and VW Group	2026
Distribution Grid Electrification Model 2025 Study and Report	California Public Advocates Office	2025
DRAFT Electrification Impact Study Part 2	Pacific Gas & Electric	2025
Electrification Impacts Study Part 2: Draft Report	Southern California Edison	2025
Harnessing the Power of Electric Vehicles	Union of Concerned Scientists	2025
Impact of electric vehicle charging demand on power distribution grid congestion	Yanning Li and Alan Jenn, UC Berkeley	2025
New York's Grid Flexibility Potential: Volume I: Summary Report	Brattle	2025
Peak Potential: Load Management for an Affordable Net-Zero Grid	Energy + Environmental Economics	2025
PG&E Draft Electrification Impact Study Part 2	Energy + Environmental Economics	2025
Standard Review Projects and AB 1082/1083 Pilots: Evaluation Year 2024	Cadmus	2025
The Utility Playbook: Turning EV Grid Risk into a $30 Billion Opportunity	Brattle	2025
Multi-State Transportation Electrification Impact Study	National Laboratory of the Rockies, Lawrence Berkeley National Laboratory, Kevala, and U.S. Department of Energy	2024
The State of Managed Charging in 2024: the Next Iteration: Distribution-Level Optimization	Smart Electric Power Alliance	2024
Unlocking the Value of Flexible DERs	Energy + Environmental Economics	2024
Economic Analysis of Vehicle-to-Grid Fleets for Grid Services	Pacific Northwest National Laboratory	2023
Quantifying the Financial Impacts of EVs on Utility Ratepayers and Shareholders	Lawrence Berkeley National Laboratory	2023
Advanced Rate Designs Harnessing Vehicle-Grid Integration Technology	Energy + Environmental Economics, Honda	2021
The value of consumer acceptance of controlled electric vehicle charging in a decarbonizing grid: The case of California	UC Irvine and Rochester Institute of Technology	2021

Final Report of the California Joint Agencies Vehicle-Grid Integration Working Group	Joint California State Agencies	2020
Distribution System Constrained Vehicle-to-Grid Services for Improved Grid Stability and Reliability	EPRI	2019
EPRI - Open Standards-Based Vehicle-to-Grid: Value Assessment	EPRI	2019
The Costs of Revving Up the Grid for Electric Vehicles	Boston Consulting Group	2019
The Potential Electric Grid Benefits of Vehicle-to-Grid Technology in California	Lawrence Livermore National Laboratory	2018

The JU Report and the above-listed literature collectively detail clear benefits of maturing the portfolio of New York's managed charging programs. Without clear direction to significantly expand the use of active managed charging to unlock greater distribution system optimization benefits, implement more dynamic cost optimization, and co-optimize with decarbonization goals, these benefits may remain locked away behind existing but latent EV flexibility capability.

The JU Report recommends the Commission "allow utilities to include program designs that incorporate these additional objectives in modifications provided that they align with the guidance and categories outlined in Recommendation #4."[7] **Rather than merely "allowing" utilities to include these program design elements, VGIC recommends the Commission explicitly <u>order</u> them to do so <u>in any forthcoming proposals, applications, or utility-led program changes.</u>** VGIC urges this more direct and prescriptive approach because of the high cost of inaction, should a utility opt out of implementing these higher-value capabilities. New York's energy affordability, reliability, and decarbonization future depends significantly on the degree to which utilities tap all currently available tools, including unlocking already-deployed, customer-owned energy resources like EVs and EVSE.

III. VGIC COMMENTS ON THE JOINT UTILITIES' RECOMMENDATION #2.

The JU Report highlights the utilities' firsthand experience working with vendors, as well as their detailed knowledge of their own capabilities to leverage existing vendors' offerings to meet grid needs. The primary goal of managed charging and VGI broadly is to ensure that EV

[7] JU Report at 21.

load flexibility is recognized and compensated to support an affordable, reliable, and decarbonized energy future. VGIC offers the comments below to align Recommendation #2 as closely as possible with this primary goal.

Overall, VGIC supports multiple participation pathways and recognizes that these multiple pathways offer various benefits and risks. We encourage the utilities to consider the relevant tradeoffs when assessing vendors and partners. Customers' options for participating in a managed charging program should reflect a utility's service territories, program objectives, and available technologies. Eligible pathways should include both networked EVSE and vehicle telematics, as long as the chosen approaches are capable of reliably meeting managed charging program goals. No single pathway will serve every customer, vehicle, charging configuration, or use case. Utilities should evaluate available options based on supporting enrollment rates, customer access, cost, reliability, functionality, and data quality, and explain their pathway selections in their Managed Charging Implementation Plans. This flexibility should not result in unnecessarily narrow eligibility that excludes significant numbers of customers or imposes undue limits on competition among automakers, charging providers, and program vendors. Greater participation pathways can support program scale, thereby increasing program cost-effectiveness and, ultimately, supporting New York's affordability, reliability, and decarbonization efforts.

The JU Report notes:

> Ultimately, program effectiveness is the result of holistically evaluating the available program delivery options and associated tradeoffs, considering factors such as customer access, cost, reliability, functionality, and data quality when selecting vendors to support managed charging programs.[8]

VGIC generally agrees with this finding, especially regarding the evaluation of tradeoffs and the consideration of functionality. These tradeoffs include the benefits and costs of OEM-authorized telematics vs customer-authorized telematics. These approaches may be suitable for different use cases, depending on the access to and fidelity of the collected data. As such, the JU and Commission should continue detailing the appropriate use cases and tradeoffs for OEM-

[8] JU Report at 24.

authorized telematics vs customer-authorized telematics. Although there is some variation among them, OEM-authorized telematics are generally based on defined data schemas, data collection methods, and error-handling expectations. Customer-authorized telematics rely on customer credentials and endpoints designed to leverage existing consumer apps. Both pathways share commonalities, as detailed in the *Technical Standards Working Group Report Addressing Electric Vehicle Supply Equipment and Telematics Accuracy* (TSWG Report), filed September 2, 2025. First, both pathways leverage the same underlying telematics data sources, though they may be structured differently. Second, the vehicle telematics data sources, in general, were not historically purpose-built to support managed charging programs or utility use cases. Third, it is clearly possible to address certain errors or gaps in the underlying telematics data by processing it to make it suitable for use in a managed charging program or utility use cases.

The tradeoffs across various participation pathways, including networked EVSE, OEM-authorized telematics, and customer-authorized telematics, also extend to associated customer engagement channels. Leveraging a variety of marketing and enrollment channels provides a strong foundation for program scale. Marketing and enrollment can be supported through mobile applications, email marketing, dealerships, installer and electrician outreach, and other OEM and EVSE channels likely to offer cost-effective pathways to enroll many customers efficiently. However, it is important to note that customer engagement tools may not offer an equal experience across all participation pathways or even different providers within a single participation pathway. As such, choices around customer engagement and enrollment channels may ultimately impact the extent and quality of program access, as well as the ability for customers to re-access the program after customer- or vendor-induced changes to hardware or software.

Regardless of the chosen participation pathways and associated customer engagement channels, significant investment will likely be required to expand enrollment, as the overall state of industry- and utility-led customer engagement in managed charging programs remains relatively nascent. This same dynamic is found when considering the state of customer education for EVs, generally, with Plug In America's *2026 Annual EV Driver Survey* demonstrating EV drivers self-report EV-specific websites or forums (78.6%), video reviewers (57.1%), and friends and family (31.9%) as their top sources of "useful" information.[9] Regarding managed charging, only about 20% of EV owners reported they received education or advice from dealerships on how to optimize home charging in JD Power's *2026 U.S. Electric Vehicle Experience Home Charging Study*.[10] These findings suggest an overall underperformance in customer engagement strategies, including utility-, OEM-, and non-OEM-managed channels. VGIC recommends that the utilities consider any relevant trade-offs in customer engagement tools arising from the chosen participation pathways.

As detailed in VGIC's *Comments on the Technical Standards Working Group Report Addressing EVSE and Telematics Accuracy and DPS Staff Questions*, filed December 8, 2025, and our subsequent reply comments filed December 22, 2025,[11] we anticipate the reliability, data accuracy, and other tradeoffs of vendor offerings, including those highlighted above, will become much more important considerations as three factors mature:

(1) overall program enrollment;

(2) program focus on distribution system optimization;

(3) enrollment of customers in dynamic and dispatchable active managed charging programs.

As each of these factors evolves, the operational importance of the programs is likely to increase, as will the cost stemming from limited customer access, reliability, functionality, and data quality. Similarly, the extent to which the grid relies on managed charging programs can have implications for cybersecurity needs. As such, the utilities should also consider the evolving performance requirements they demand from vendors, including by leveraging existing customer

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[9] Plug In America. *2026 Annual EV Driver Survey.* July, 2026. https://pluginamerica.org/wp-content/uploads/2026/07/2026-Plug-In-America-EV-Driver-Annual-Survey-Report.pdf

[10] JD Power. *EV Home Charging Costs Rise and Satisfaction Falls, but Few EV Owners Take Advantage of Scheduled Charging or Smart Chargign Programs, JD Power Finds.* March 23, 2026. https://www.jdpower.com/business/press-releases/2026-us-electric-vehicle-experience-evx-home-charging-study/

[11] See: *Comments of the Vehicle Grid Integration Council (VGIC) on the Technical Standards Working Group Report Addressing EVSE and Telematics Accuracy and DPS Staff Questions.* Case 18-E-0138. December 8, 2025; and *Reply Comments of the Vehicle Grid Integration Council (VGIC) on the Technical Standards Working Group Report Addressing EVSE and Telematics Accuracy and DPS Staff Questions.* Case 18-E-0138. December 22, 2025.

data access frameworks used for Green Button Connect, EDI, and similar initiatives. These performance requirements may be met by vendors through sufficient data completeness, accuracy, latency, and affordability; error handling and continuity of customer experience; cybersecurity practices, including those based on NIST standards; ability to support relevant measurement and verification requirements; ability to support program goals without compromising customer mobility needs; and the pathways' suitability for the desired use cases, including passive managed charging, active managed charging, and bidirectional charging.

As programs continue to optimize for greater grid services, such as localized distribution constraints, deferring or avoiding infrastructure upgrades, improving hosting capacity for electrification, and supporting more efficient operation of the distribution grid, the available participation pathways and enabling technology integrations should be similarly optimized. With this in mind, the VGIC recommends that the Commission direct the JU to clearly define the core performance standards and capabilities it seeks, and to use the RFP process to assess and compare vendors' capabilities to meet these standards. In contrast to our comments above on Recommendation #1, which urge **specificity regarding the goals** of managed charging programs, our feedback on Recommendation #2 urges **providing the JU, who have firsthand experience implementing programs, with flexibility in the means to achieve Commission-set program goals.**

As overall program enrollment, focus on distribution system optimization, and enrollment of customers in dynamic and dispatchable active managed charging programs grow, VGIC recommends that the Commission consider prescribing more specific standards for customer access, cost, reliability, functionality, and data quality. These standards should be closely aligned with related national efforts, including those from standards bodies or industry-led efforts, as detailed in VGIC's *Comments on the Technical Standards Working Group Report Addressing EVSE and Telematics Accuracy and DPS Staff Questions*, filed December 8, 2025, and our subsequent reply comments filed December 22, 2025. Adopting more specific, fit-for-purpose, and nationally aligned measurement and verification requirements that reflect how the data will be used will reduce risk and expand benefits as programs and emerging technologies continue to mature.

IV. VGIC COMMENTS ON THE JOINT UTILITIES' RECOMMENDATION #3.

VGIC supports establishing an evergreen program structure with triennial review and budget cycles. This will send a clear regulatory signal to industry actors, providing market certainty and facilitating investment that will enable greater technological capabilities, including both managed charging and bidirectional charging solutions. Moreover, program continuity mitigates the risk of disrupting customer engagement and, in turn, undermining program goals.

A triennial review and budgeting cycle strikes an appropriate balance of long-term market stability with necessary regulatory oversight and accountability. During these reviews, the Commission and other interested parties can assess performance and recommend or adopt modifications to budget categories, technology requirements, and/or incentive structures to meet evolving grid needs and solution capabilities.

In addition to the base triennial review and budget cycle, VGIC also recommends the Commission grant utilities flexibility to seek off-cycle program and budget modifications if participation materially strays from expectations (in either direction) and/or to extend existing authorizations if unforeseen policy and regulatory developments threaten the continuity of the program lapse. Overall, any material change should remain transparent, data-driven, and subject to stakeholder input.

V. VGIC COMMENTS ON THE JOINT UTILITIES' RECOMMENDATION #4.

As detailed above, VGIC supports a triennial review with flexibility to seek off-cycle changes. To facilitate efficiency and limit delay, mechanisms for interim or off-cycle program updates should also be defined by the Commission. This is needed as technologies, customer preferences, and utility program learnings are continually evolving. As such, VGIC supports the proposed tiered approach to modifications:

- Immaterial changes and administrative updates: Adding eligible vehicle or charger models, eligible vendors or channels through which customers can enroll, minor incentive adjustments within Commission-authorized parameters, and similarly minor program updates should be implementable without formal Commission or DPS staff approval.

- Department of Public Service (DPS) Staff review: Limited modifications and/or specific time-bound pilots or demonstrations, for example, testing new technologies, should require only DPS Staff review and approval.
- Commission approval: Material changes to program objectives, eligibility, or incentive structures should remain subject to full Commission review and stakeholder comment.

This flexibility can reduce administrative burden and allow programs to evolve alongside the technology landscape, customer understanding, and utility learnings. Regardless of the approach taken, changes should be made apparent on utility- or vendor-maintained program webpages, in any interim program reporting, or, if a formal proposal to the Commission, on the docket card.

VI. VGIC RESPECTFULLY URGES THE COMMISSION TO DIRECT UTILITIES TO LAUNCH BIDIRECTIONAL CHARGING OFFERINGS AS A SUBSET OF MANAGED CHARGING PROGRAMS IN THE NEAR-TERM.

Given the immense potential of dispatchable bidirectional charging systems to support customer needs, bolster grid reliability, and lower system costs, as well as recent major developments aimed at lowering the costs of bidirectional charging equipment, **VGIC strongly recommends that the Commission direct utilities to launch dispatchable bidirectional charging offerings as a subset of managed charging programs.**

Explicitly requiring each utility to propose a near-term bidirectional charging offering within its managed charging portfolio will help to unlock latent energy storage capacity for New York's grid. Notably, the long-promised market for bidirectional charging is here today, with 18 light-duty vehicle models across 9 OEM brands currently offering grid-parallel bidirectional charging features, as well as nearly every electric school bus sold in the U.S. over the last 5 years. New York stands as a stark outlier among its region and peer EV leadership states, offering no dispatchable programs that enable bidirectional charging systems to support the grid. California (via Emergency Load Reduction Program and Demand Side Grid Support) and Massachusetts and Rhode Island (under ConnectedSolutions) have been leveraging dispatching bidirectional charging systems for years to support real-time grid needs; Colorado and Maryland's approved dispatchable programs – Aggregator Virtual Power Plant and V2G Pilots, respectively – support the enrollment of bidirectional charging systems. Customers in Texas (under the Aggregated Distributed Energy Resource program) can export power from eligible vehicles to dynamically support the grid when needed, while pending proposals in Virginia and New Jersey and forthcoming filings in Connecticut and Illinois would enable the same. While New York utilities offer static export credits to bidirectional charging customers through the Value of Distributed Energy Resources (VDER) tariff, and NYSERDA continues to fund *ad hoc* single-site technology demonstrations for bidirectional charging systems, these approaches significantly underutilize the greatest feature of EVs and bidirectional charging systems: widespread dispatchability.

As demonstrated by Table 1 in Section II above, the potential value of bidirectional charging solutions is tremendous. Notably, the Grid of the Future analysis commissioned by the Commission and developed by Brattle demonstrates that EVs – including both managed and bidirectional charging – represent the largest single source of long-term load flexibility. Meanwhile, the market and product readiness is evolving at a rapid pace, growing the ability for dispatchable bidirectional charging systems to meaningfully support New York's grid. For example, the first AC bidirectional charging solution – in which inverter functionality is onboard the vehicle – is now available in the U.S. market, offering access to these features at a lower overall cost to the customer. In May 2026, UL 1741, the core certification standard for the safe and reliable interconnection of generators and energy storage to utility systems, was updated to incorporate UL 1741 SC, a long-awaited supplement intended to facilitate widespread, interoperable, and low-cost bidirectional AC charging. In July 2026, ISO 15118-20 Amendment 1 was published, further catalyzing progress toward widespread, interoperable bidirectional charging features for both DC and AC charging systems.

In anticipation of these key standards and other developments in the bidirectional charging system market, several utilities and states have recently adopted or proposed updates to interconnection rules, including in California, Connecticut, Maryland, Massachusetts, Nevada, New Mexico, and Texas. Here, too, the JU and Commission remain outliers among their peers, having not yet taken action to consider the updates needed to enable the safe interconnection of grid-parallel AC bidirectional charging systems. VGIC looks forward to continued engagement with New York's Interconnection Technical Working Group to modernize the JU interconnection rules to ensure the safe and reliable interconnection of bidirectional charging systems. We respectfully request that the Commission, in this or another proceeding, set a schedule for these updates, as previous ITWG updates have been *ad hoc*, hindering progress and introducing significant uncertainty into market development.

As stated above, the primary barrier to unlocking dispatchable, grid-supportive bidirectional charging remains the lack of an available program participation pathway for customers. **VGIC urges the Commission to directly address this gap in any upcoming order directing changes to or the continuation of the JU managed charging program portfolio, rather than deferring to future program cycles (i.e., the next triennial review) or other venues facing delay (i.e., the Grid of the Future proceeding).** VGIC remains an active contributor to the Grid of the Future proceeding, including as a member of every Capability Assessment Team managed by the Commission's consultant, Guidehouse. However, near-term progress on dispatchable bidirectional charging programs need not wait on the Grid of the Future proceeding. Instead, VGIC recommends that the Commission "builds the bridge from both ends." In other words, near-term, participation-limited dispatchable bidirectional charging should be enabled **now** through the JU managed charging program portfolio, as the Commission and stakeholders develop long-term frameworks for leveraging dispatchable DERs. This can establish a base of customers who can later be moved over, as appropriate, into the long-term framework for leveraging dispatchable DERs. Additionally, this approach can provide key learnings in the near-term to development Grid of the Future policies. Moreover, and perhaps most obviously, New York can deploy these assets immediately by leveraging the underlying customer enrollment, dispatch, and incentive structures already established by existing managed charging programs. Lastly, such a program offering could establish an important alternative for customers for whom the existing VDER tariff is not well-suited. This could be due to customer mobility needs and/or preferences, as the ways customers interact with their vehicles and with the grid through vehicles and chargers vary widely across customers.

With this in mind, VGIC reiterates its recommendation that the Commission should direct the JUs to introduce near-term, dispatchable bidirectional charging offerings within the JU managed charging portfolio as an alternative option to VDER. Participation can be limited, if needed, to help ensure the primary focus of the programs remains on shifting EV load. This approach is essential for gaining real-world experience to inform future policy developments, accommodate diverse customer needs and preferences, and, more than anything, maximize the grid and ratepayer benefits of existing customer-owned resources without "reinventing the wheel" in program design.

VII. CONCLUSION

VGIC appreciates the opportunity to provide these comments and looks forward to working with the Commission, the joint utilities, and other stakeholders to ensure the success of New York's transportation electrification efforts.

Respectfully submitted,

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